SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK
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DR. PETER DASZAK, PH.D.,

AS PLAINTIFF,

V.

ECOHEALTH ALLIANCE INC., STEVEN SHAPIRO, INDIVIDUALLY AND AS CHAIRMAN OF THE BOARD OF DIRECTORS OF ECOHEALTH ALLIANCE, INC., AND JULIET AGRANOFF, DR. FREDERICK BAUM III, JOE CURRY, KAREN DENTON, RALPH E. GOMORY, NANCYE GREEN, NANCY GRIFFIN, ROBERT HOGUET, CHARLES HIRSCHLER, GEOFFREY POTTER, ELLEN SHEDLARZ, LISA SILVERSHEIN, JARRET STEPHENS, PAMELA M.THYE, CARLOTA VOLLHARDT, STEVEN WILS, AND DR. LILIAN WU

AS DEFENDANTS.

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SUMMONS

New York County
Index No:_____

To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint. The basis of venue is the defendant Stephen Shapiro’s residence, 145

East 76th Street, New York, NY 10021.

Dated: New York, New York
November 2, 2025

Law Offices of
Joseph E. Gasperetti

By /s/Joseph E. Gasperetti
Joseph E. Gasperetti
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VERIFIED COMPLAINT

New York County
Index No._____

PLAINTIFF DEMANDS TRIAL BY JURY

I.
NATURE OF THE ACTION

1. Plaintiff Dr. Peter Daszak commences this action to remedy the defendants' discrimination against him (a) on the basis of his age in violation of the New York State Human Rights Law, (b) on the basis of his age in violation of the New York City Human Rights laws, and (c) to remedy EHA's breach of the employment agreement between Dr. Daszak and EHA.

The intentional unlawful conduct Dr. Daszak complains of shocks the conscience.

For 24 years, Dr. Daszak, who is an internationally renowned scientist, served as President and Chief Executive Officer of EHA. During that time, he achieved internationally renowned success in the field of zoonotic diseases, like SARS and MERS. He managed the scientific efforts of EHA and its staff. He also succeeded in garnering on EHA's behalf millions of dollars of grants from the United States federal government which funded EHA's efforts. He supervised international efforts to discover the origin of zoonotic diseases.

In 2020, after Covid 19 emerged in the United States, the United States Federal Government instigated an investigation which sought to debar both DR. Daszak and EHA from federal research grants. Dr. Daszak spearheaded EHA's defense against the Government's efforts.

In 2024, EHA's Board concluded that its efforts to stop the government from debarring Dr. Daszak and EHA may fail, the Board instructed Dr. Daszak to terminate the majority of EHA's staff of nearly 68 people. He did just that. He dealt fairly with each of the persons who were terminated or resigned, paying each person the severance of two weeks per year for each year's service, as required by EHA's written policies. When Dr. Daszak had finished

culling the EHA employee staff, the defendants threw Dr. Daszak to the curb. Without any notice, they terminated his employment and terminated him as a member of the EHA Board in violation of the EHA ByLaws. To avoid paying Dr. Daszak any severance, the defendants claimed Dr. Daszak was terminated for cause. The defendants have never deigned to identify that cause.

The Court and Jury in this case will determine that no such cause existed.

II.
JURISDICTION AND VENUE

2. The defendant EHA is a corporation formed under the *Not for Profit Laws* of the Commonwealth of Massachusetts. At all times relevant to this action, EHA had its principal place of business, in the State, City and County of New York.

3. The plaintiff Dr. Daszak is a natural person who is a resident of the County of Rockland, State of New York. At all times relevant to this action, Dr. Daszak served as the President and Chief Executive Officer of EHA and was a member of EHA's Board of Directors.

4. Pursuant to CPLR § 503 venue is proper in this County on the basis of the principal place of business of EHA and the residence of most of the defendants. Moreover, a substantial

part of the acts and transactions which plaintiff complains of took place in the State, City and County of New York.

5. Pursuant to CPLR § 302 jurisdiction is proper in this Court because (I) the plaintiff Dr. Daszak is a resident of the State of New York, (ii) at all times relevant to this action, the defendant EHA had its principal place of business in the State, City and County of New York, and (iii) a substantial part of the acts and transactions complained of took place in the State, City and County of New York, and elsewhere.

III.
THE PARTIES AND OTHER INTERESTED PERSONS

6. The Plaintiff Dr. Daszak is a natural person, who resides in Rockland County, New York. At all times relevant to this action, Dr. Daszak was the duly elected President and Chief Executive Officer of EHA. At all times relevant to this action, and until June 30, 2025, Dr. Daszak was a member of EHA's Board of Directors.

7. Dr. Daszak has worked for more than 25 years in infectious disease and conservation research and outreach, designing and managing international collaborative programs in over 45 countries. He is the President of the nonprofit Nature Health Global, and former President of EHA. He is a member of

the United States National Academy of Medicine, and Editor-in-Chief of the Springer-Nature journal *EcoHealth*. He has raised over $150 million for scientific research, conservation programs and international projects from major donors, corporations, foundations and Federal agencies. He was in the leadership team of USAID PREDICT 1 & 2 ($240 million over 10 yrs. for emerging disease research and outreach), was Chief-of-Party for USAID IDEEAL, and has been Principal Investigator on approximately 10 multi-year NIH and NSF grants. Dr. Daszak has published over 325 scientific papers on the origins and drivers of emerging diseases involving diverse disciplines from conservation biology, virology, ecology and environmental sustainability to community outreach programs that reduce the risk of disease emergence. Dr. Daszak's research successes include discovering the bat origin of SARS-CoV, MERS-CoVs, SADS-CoV, and SARS-CoV-2, identifying the drivers of Nipah virus emergence, identification of chytridiomycosis as the cause of global amphibian declines, and publishing the first global emerging disease 'hotspots' map. Dr. Daszak is a member of the National Academies Standing Committee on Emerging Infectious Diseases & 21st Century Health Threats, and former Chair of NASEM's Forum on Microbial Threats. He has

served on panels, committees and advisory boards to the US National Research Council, Future Earth, two *Lancet* commissions (One Health & COVID-19), WHO R&D Blueprint program for pathogen prioritization, and the WHO-China Joint Study on the Animal Origins of COVID-19. Dr. Daszak won the 2000 CSIRO medal for collaborative research on the discovery of amphibian chytridiomycosis and has been ranked by the Web of Science as a *Highly Cited Researcher* in multiple years. (A true copy of Dr. Dazak's curriculum vitae is annexed hereto as Exhibit 1.)

8. The defendant EHA is a non-profit corporation formed under the laws of the Commonwealth of Massachusetts. At all times relevant to this action, EHA had its principal place of business in the State, City and County of New York. Upon information and belief, for reasons unknown, in June 2025, Defendant EHA relocated its principal place of business from New York County to a Post Office Box located in the Commonwealth of Massachusetts.

9. The defendant Stephen Shapiro (called "Mr. Shapiro" or the "Defendant Shapiro") is, on information and belief, the Chairman of the Board of Directors of EHA. The Defendant Shapiro is a resident of the State, City and County of New York. At all times relevant to this action, Mr. Shapiro acted on his own behalf and on

behalf of the defendant EHA.

A. The EHA Board of Director Defendants

10. The defendant Juliet Agranoff is a Director of EHA; she resides in Shrewsbury, New Jersey.

11. The defendant Frederick Baum is a member of the Board of Directors and is the Treasurer of EHA; he resides in Arlington, Vermont.

12. The defendant Joe Curry is a Director of EHA; he resides in New York, New York.

13. The defendant Karen Denton is the Secretary of the EHA Board; she resides in Jersey City, New Jersey.

14. The defendant Ralph E. Gomory, is an EHA Board Member; he resides in Chappaqua, New York.

15. The defendant Nancye Green is a Director of EHA; she resides in New York, New York.

16. The defendant Nancy Griffin was Vice Chair of EHA; she resides in Boston, Massachusetts.

17. The defendant Charles Hirschler is a Director of EHA; he resides in Greenwich, Connecticut.

18. The defendant Robert Hoguet is a Director of EHA; he resides in New York, New York.

19. The defendant Geoffrey Potter is a Director of EHA; he resides in New York, New York.

20. The defendant Stephen Shapiro is a Director of EHA, who resides

in New York, New York.

21. The defendant Ellen Shedlarz is a Vice Chair of EHA's Board; she resides in New York, New York.

22. The defendant Lisa Silvershein is a Director of EHA Alliance, she resides in Orlando, Florida.

23. The defendant Jarret Stephens is a Director of EHA; he resides in New York, New York.

24. The defendant Pamela M. Thye is a Director of EHA; she resides in Greenwich, Connecticut.

25. The defendant Carlota Vollhardt is a Director of EHA; she resides in New York, New York.

26. The defendant Steven Wils, is Secretary of EHA; he resides in New York, New York.

27. The defendant Lilian Wu, is a Director of EHA; she resides in Chappaqua, New York.

IV.
THE FACTS

A. EHA's Scientific Activities

28. EHA was incorporated, as a Not-for-Profit Corporation, under the laws of the Commonwealth of Pennsylvania under the name Wildlife Preservation International, Inc. On June 22, 2010, Wildlife Preservation International, Inc.'s name was changed to EHA.

Until January 6, 2025, Plaintiff Dr. Daszak served as President and Chief Executive Officer of EHA and as a member of EHA's Board of Directors (the "EHA Board"). During his employment, Dr. Daszak reported directly to the Chairman of EHA's Board. The Chairman of EHA's Board, as of January 6, 2025, was the Defendant Mr. Shapiro.

29. EHA is engaged in the scientific study of the various human diseases which might arise as a consequence of human interaction with non-humans, including bats and insects. EHA was especially involved in studying matters concerning the transmission of diseases from bats to humans.

30. EHA's efforts were in large part financially supported by the United States Federal Government (the "Government") through the award of numerous grants from the Government. A grant is a highly controlled and regulated award of the sum of a specific amount of money for a specific amount time for the purposes set forth in the application by the prospective Grantee. The prospective Grantee submits its application to the Government. In consideration of the Grantee's application, the Government may award a specific sum of money to the prospective Grantee for the purposes set forth in the Grant application (as agreed upon by the prospective Grantee and the Government).

31. The process of applying for grants and receiving a Grant is strictly regulated by numerous Federal Laws. The legal responsibility for complying with the terms of a Grant rests, in large part, upon the Grantee.

32. At all time relevant to this action, EHA received numerous Grants from the Government.

33. On May 27, 2014, the Government, in the form of NIH/NIAID, awarded a Grant to EHA, for the time period 2014 to 2019 (the "2014 Grant"). The 2014 Grant federally funded research and experiments to be conducted by EHA and the Wuhan Institute of Virology ("WIV"), as sub-recipient under the supervision of EHA at a laboratory in Wuhan, China. That research concerned the potential transmission of coronaviruses from bats to humans.

34. In 2019, the novel coronavirus emerged in humans in Wuhan, China.

35. The novel coronavirus (called "COVID 19") emerged in humans in the United States in or about 2020.

36. Certain nationwide media reported that Covid 19 had developed and infected humans because Covid had escaped from a laboratory operated by WIV.

37. In April 2020, the Government commenced an investigation

of the 2014 Grant. That 2020 investigation instigated by the Government targeted both EHA and Dr. Daszak, who served as the Principal Investigator and Program Director for the 2014 Grant. WIV was also investigated as a sub-recipient of the 2014[1] Grant.

38. In 2024, the Government notified EHA that the Government proposed to suspend and debar EHA and Dr. Daszak from receiving future federal Grants.

39. For federal contractors, like Dr. Daszak and EHA, debarment from federal grants has both devastating financial consequences and devastating consequences to the reputation of the grant recipients.

40. In fact, approximately 80% of EHA's annual revenues for many years represented payments from the Government in satisfaction of numerous Grants.

41. Because Dr. Daszak was both the Principal Investigator[2] and

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[1] Numerous Government regulations and laws govern the receipt and the performance by a sub-recipient, like WIV, of a Grant.

[2] "A principal investigator (PI) is the researcher, usually a doctor or other medical professional, who leads the clinical research team and, along with the other members of the research team, regularly monitors study participants' health to determine the study's safety and effectiveness. A PI is primarily responsible for the preparation, conduct, and administration of a research grant, cooperative agreement, or other sponsored project in compliance with applicable laws and regulations and

Program Director[3] for the 2014 Grant, the defendants that knew if he were barred or suspended from the receipt of federal grants, both EHA and Dr. Daszak would suffer enormous financial harm.

42. Moreover, Dr. Daszak's reputation was at stake, as was EHA's.

B. Dr. Daszak and EHA Attempt to Stop the Government From Debarring Them

43. Recognizing the potential peril of the Government's investigation EHA, Dr. Daszak, and the public faced, EHA's Board

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institutional policy governing the conduct of clinical research." https://toolkit.ncats.nih.gov/glossary/principal-investigator-2/ (last visited 11 October 2025)

[3] "Multiple Program Director/Principal Investigator (multiple PD/PI) awards are an opportunity for multi disciplinary efforts and collaboration through a team of scientists under a single grant award. All PD/PIs share equally the authority and responsibility for leading and directing the project, intellectually and logistically. Each PD/PI is responsible and accountable to the applicant organization, or as appropriate to a collaborating organization, for the proper conduct of the project or program, including the submission of all required reports. The presence of more than one PD/PI on an application or award diminishes neither the responsibility nor the accountability of any individual PD/PI. The applicant/recipient organization is responsible for securing and retaining the required written assurance signatures from each identified PD/PI on all applications, post-submission information, progress reports, and post-award prior approval requests and must make these signatures available to NIH or other authorized DHHS or Federal officials upon request." (Last visited October 28, 2025.)

hired Steptoe & Johnson, a Washington, D.C. law firm renowned for its expertise in government contracting.

44. By letter dated July 22, 2024, Steptoe made a submission to the Department of Health and Human Services styled "Submission of Ecohealth Alliance and Dr. Peter Daszak Regarding their Present Responsibility."

45. In or about late December 2024, on information and belief, the Defendants concluded that Dr. Daszak's and EHA's efforts to prevent the debarment of Dr. Daszak and EHA by the Government would not be successful.

46. In or about late January 2024, the Government barred both EHA and Dr. Daszak from receiving any Government grants for a period of five years.

C. During the Government's Investigation, Dr. Daszak is Instructed by EHA'S Board of Directors to Terminate Nearly All of EHA's Employees.

47. The defendant Mr. Shapiro, acting on his own behalf and on behalf of the defendant EHA, instructed Dr. Daszak to terminate the employment of each of EHA employee in Exhibit 3 annexed hereto[4].

48. After Dr. Daszak had terminated or solicited the voluntary

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[4] The names of the employees have been redacted. Those names are available upon the request of the defendants and their agreement to execute a Stipulation of Confidentiality.

termination of the EHA employees identified below, the defendants conspired, confederated and agreed to terminate Plaintiff Dr. Daszak's employment.

D. Dr. Daszak is Ambushed by the Board and He is Fired.

49. On January 6, 2025, the defendant EHA and the Board Defendants, under the leadership and special instance of the Defendant Shapiro, ambushed Dr. Daszak and terminated his employment allegedly for cause during a hastily convened Zoom conference.

50. The Board Defendants have never identified the alleged cause which allegedly inspired them to fire Dr. Daszak.

51. Dr. Daszak was given no notice of the decision to terminate him as a Director of EHA and as President of EHA. Nor was he offered any severance in consideration of his 24 years of employment at EHA.

52. Section 8 of EHA's Bylaws provides as follows:

> Section 8. Removal. Any director may be removed from office at any time, with or without cause, at any time by the vote of a majority of the directors then in office at a meeting of the board of directors or a special meeting called for such purpose. A director may be removed for cause only if notice of such action shall have been given to all directors prior to the meeting at which such action is to be taken and if the director so to be removed shall have been given reasonable notice and opportunity to be heard before the body proposing to remove him or her.

(A true copy of EHA's bylaws is annexed hereto as Exhibit 2.)

53. The termination of Dr. Daszak's directorship violated

EHA's Bylaws.

54. Dr. Daszak remains unemployed and is now poor.

IV.
PLAINTIFF DR. DASZAK'S CLAIMS FOR RELIEF

First Claim for Relief Against All Defendants
(Violation of the New York State Human Rights Law)

55. Plaintiff Dr. Daszak repeats and re-alleges the allegations of paragraphs 1 to 54 above with the same force and effect as if set forth at length herein.

56. The plaintiff was born on November 18, 1965 and is presently 59 years old.

57. This action is brought against the defendants on the basis of an unlawful discriminatory practice relating to employment of plaintiff due to plaintiff's age.

58. Plaintiff was employed by defendant EHA on or about April 1, 2001, and was continuously employed by defendant from April 2001 until January 6, 2025.

59. On or about January 6, 2025, Dr. Daszak was informed by defendants Shapiro, and EHA's Board that Dr. Daszak's employment as CEO of EHA would be terminated for cause, effective January 6, 2025.

60. Plaintiff Dr. Daszak:

(I) was paid no severance in connection with his

termination in violation of EHA's written policies;

(ii) contrary to EHA's Bylaws, Plaintiff Dr. Daszak's employment as an EHA Director was terminated without notice and an opportunity to be heard;

(iii) despite due demand, the defendants have refused to identify the cause for Plaintiff Daszak's termination; and,

(iv) As set forth below, the termination of Dr. Daszak's employment was a sham orchestrated by the defendants to avoid paying him the severance he was due;

61. Plaintiff was dismissed and terminated due to his age.

62. Plaintiff, with 24 years of continuous service with defendant EHA, was the most senior and eldest EHA employee. The other terminated employees were younger and far less qualified than Dr. Daszak.

63. During the entire period of Dr. Daszak's employment with the EHA, plaintiff performed his scientific and management work and duties in a stellar manner.

64. On the instruction of the defendant EHA and its Board of Directors and the defendant Shapiro, Dr. Daszak terminated 26 employees and paid them at least two weeks severance for each year they had been employed by EHA. Exhibit 3 which is annexed hereto is

a spread sheet identifying[5] the name, age and date of termination and amount of severance paid to each of those employees.

65. Dr. Daszak was unable to secure new employment after dismissal by the defendants.

66. The acts of defendants constitute unlawful discrimination in violation of the Exec. Law § 296.

67. The actions of all defendants are with malice and without reason or basis and are so arbitrary, cacious and unfounded that plaintiff is thereby denied due process of law.

68. By reason of the aforesaid termination of the plaintiff Dr. Daszak by defendants, plaintiff suffered loss of income and benefits and was caused mental anguish all to his damage in the sum in excess of $1,000,000.00, not including punitive damages attorneys fees, interest, and costs.

Second Claim for Relief Against all Defendants
(Violation of the New York City Human Rights Law)

69. Plaintiff repeats and re-alleges the allegations of paragraphs 1 to 68 above with the same force and effect as if set forth at length herein.

01. The conduct described above in paragraphs 1 to 69 violates the New York City Human Rights Law.

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[5] The names of the other employees have been redacted to protect their privacy.

71. Plaintiff has suffered compensatory and consequential damages, emotional distress and has incurred attorneys fees and costs as direct and proximate cause of the conduct described above.

Third Claim for Relief Against all Defendants
(Breach of Contract)

72. Plaintiff repeats and re-alleges the allegations of paragraphs 1 to 72 above with the same force and effect as if set forth at length herein.

73. The plaintiff Dr. Daszak and the defendant EHA entered into a contract;

74. The terms of that contract are:

A. Dr. Daszak agreed to serve as President of EHA and to become a member of EHA's Board of Director:

B. In consideration of Dr. Daszak's agreement, EHA agreed to pay Dr. Daszak (I) a fixed sum of money per year, plus annual bonuses, the amount of the bonus to be determined at the discretion of the Board, (ii) to pay Dr. Daszak severance in the amount of two weeks compensation for each year that he was employed;

75. The Board assigned Dr. Daszak and those under his supervision to maintain and distribute an employee handbook;

76. That handbook provides that any EHA employee who was terminated would receive two weeks severance pay for each year the person had been employed by EHA, unless the employee was terminated

for cause;

77. Between May 2024 and January 2025, on the instruction and at the special instance and direction of Mr. Shapiro and the EHA Board, Dr. Daszak terminated all of the persons, identified in Exhibit 3. Each of those person received the severance payments identified in Exhibit 3 hereto.

78. In the ordinary course of his duties Joseph Ricardi, as EHA's Chief Financial Officer, would prepare financial reports for EHA's Board of Directors. Those statements were provided to the EHA Board and to Dr. Daszak as they planned layoffs. Mr. Ricardi repeatedly admitted in those financial statements that among EHA's contingent liabilities was a severance payment due under the contract between Dr. Daszak and EHA, including a fixed sum due to Dr. Daszak upon termination of his employment.

79. On January 4, 2025, Dr. Daszak was terminated without just cause, or any cause at all.

80. Dr. Daszak has performed all conditions on his part to be performed.

81. Despite due demand EHA has refused to pay Dr. Daszak the severance agreed upon by the EHA and Dr. Daszak;

82. Dr Daszak has suffered damages, including compensatory and consequential damages as a proximate and actual cause of the EHA's breach of contract.

WHEREFORE, Plaintiff Dr. Daszak prays for Judgment as follows:

A. On the First Cause of Action, for a money judgment in excess of $1,000,000.00 to remedy the compensatory and consequential and emotional distress damages, costs, attorneys fees and interest plaintiff has suffered, together with the additional sums of (a) punitive damages of $3,000,000.00 or in an amount be determined by the jury (b) the costs, attorneys' fees and interest incurred in this action;

B. On the Second Cause of Action, for a money judgment in excess of $1,000,000.00 to remedy the compensatory damages, together with costs, and attorneys fees and interest plaintiff has suffered, plus punitive damages of $3,000,000.00 or in an amount be determined by the Jury;

C. On the Third Cause of Action, for a money judgment in excess of $1,000,000.00, plus interest, costs and attorneys fees in an amount in excess thereof to be determined in discovery and at trial to remedy the defendants' intentional breach of contract; and,

E. For such other and further relief as the Court and the jury may deem just and proper.

Dated: New York, New York
November 2, 2025

Law Offices of
Joseph E. Gasperetti

By _____
Joseph E. Gasperetti

Attorneys for Plaintiff Dr. Daszak
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Fax: (212)208-2645
jgasperetti@litlawpc.com

VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF ROCKLAND)

Dr. Peter Daszak, being duly sworn, deposes and says:

1. I am the plaintiff in the above-captioned action.

2. I have read the complaint in the above captioned action, know the contents thereof to be true, and the same is true to my personal knowledge, except as to matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true.

3. I declare under penalty of perjury that the foregoing is true and correct.

Dated: October 31, 2025

Dr. Peter Daszak

Sworn to before me
this 31 day of October 2025

Notary Public

KASSIDI WALLIS
NOTARY PUBLIC, STATE OF NEW YORK
NO. 01WA6441957
QUALIFIED IN ROCKLAND COUNTY
MY COMMISSION EXPIRES OCTOBER 3, 20 26

Rule 130 Certification

I hereby certify that, to the best of my knowledge, information and belief, formed after a inquiry reasonable under the circumstances, the presentation of the paper or the contentions herein are not frivolous as defined in section 130-1.1(c) of the Uniform Rules.

Joseph E. Gasperetti